

26STCV13365 26STCV13365

County: los-angeles

Division: Civil Law and Motion

Department: 14

Hearing date: 2026-07-07

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Case Number: 26STCV13365 Hearing Date: July 7, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14

JAMES REYNOLDS,

Plaintiff,

v.

ABB, INC., et al.

Defendants.

Case No. 26STCV13365

Hearing Date: July 7, 2026

Time:

9:00 a.m.

¿ [TENTATIVE] ORDER

RE:¿

PLAINTIFF'S MOTION FOR TRIAL PREFERENCE

I.

Background

On April 24, 2026, Plaintiff James Reynolds filed his complaint for personal injury alleging he developed mesothelioma from direct exposure to asbestos from his work as an electrician with Chrysler, the U.S. Navy, and various other employers. On April 1, 2026, Plaintiff moved for trial setting preference under Code of Civil Procedure Section 36, subdivision (a) arguing that he presents evidence that he is over the age of 70, has a substantial interest in the action as a whole, and that his health is such that preference is necessary to prevent prejudicing his interest in the litigation. Plaintiff requests that the court set trial for 90 days from the hearing on this matter.

On

June 22, 2026, Defendants Mose Tec, LLC and Metalclad Insulation, LLC opposed the motion, arguing that setting a trial date 90 days from the hearing on this matter will severely impede their due process rights. On the same date, Pneumo Abex, LLC filed an opposition similarly arguing that setting trial 120 days from the hearing on this matter would impede its due process rights. Also on the same date, Defendants Schneider, Rockwell, Air & Liquid Systems Corporation, and Warren Pumps, LLC joined the other Defendants' oppositions. No Defendant substantively opposed the motion aside from the arguments about due process rights.

On June 29, 2026, Plaintiff replied, arguing that a trial date set 90 days from the hearing on this matter is necessary because Plaintiff's cancer is progressing aggressively.

Plaintiff satisfied his burden to present sufficient evidence that trial preference is necessary to prevent prejudicing his interests in litigation. The motion for trial preference is granted. However, the court does not find that a trial date 90 days from the hearing on this matter is necessary. Trial is instead set for Monday, November 2, 2026. The Final Status conference is set for Monday,

October 19, 2026. A status conference for the proposed trial setting order is set for Thursday, July 23, 2026.

II.

Discussion

A.

Legal Standard

A party who is over 70 years old may petition the court for a preference for trial date, which the court shall grant if it makes both of the following findings: (1) the party has a substantial interest in the action as a whole; and (2) the health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation. (Code Civ. Proc., § 36, subd. (a).) An affidavit submitted in support of a motion for preference under this subdivision may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party. (Id., § 36.5.) "Notwithstanding any other provision of law, the court may in its discretion grant a motion for preference that is supported by a showing that satisfies the court that the interests of justice will be served by granting this preference." (Code Civ. Proc., § 36, subd. (e).)

"Upon the granting of such a motion for preference, the court shall set the matter for trial not more than 120 days from that date and there shall be no continuance beyond 120 days from the granting of the motion for preference except for physical disability of a party or a party's attorney, or upon a showing of good cause stated in the record."

(Id., § 36, subd. (f).)

"Any continuance shall be for no more than 15 days and no more than one continuance for physical disability may be granted to any party." (Ibid.)

B.

Analysis

Plaintiff

James Reynolds is 71 years old and was diagnosed with mesothelioma in August 2025, when a July 2025 CT scan of his chest revealed suspicious nodules in his lungs and a partially collapsed lung caused by fluid buildup. (Renken Decl., Exh. 6.) Mr. Reynolds underwent surgery in August 2025 to remove fluid and take

tissue for sampling. (Id.) Testing showed that Mr. Reynolds had malignant sarcomatoid mesothelioma. (Id.) Mr. Reynolds is not a candidate for surgery and discontinued immunotherapy after developing a severe skin rash from the treatment. (Id.) By January 2026, CT scans showed that his cancer had progressed and that the nodules in his lungs had grown from 4mm to 1cm and from 1.2cm to 2cm. (Id.) Although Mr. Reynolds began chemotherapy and continued treatment through May 2026, the cancer continued to progress and spread to new sites. (Id.) In May 2026, CT scans revealed blood clots in the arteries of his left lung and a tumor in his neck which pressed against his airway. (Id.) Mr. Reynolds began radiation therapy and a new chemotherapy regimen. (Id.) Mr. Reynolds now experiences severe pain in his right chest, face, neck, and head requiring OxyCodone and a fentanyl patch to manage. (Id.) Mr. Reynolds also experiences cough, shortness of breath, and difficulty breathing requiring supplemental oxygen to manage. (Id.) These symptoms impede Mr. Reynolds's ability to communicate and leave him weak and drained. (Id.) Mr. Reynolds's medical provider, Dr. Sei Lee, opines that Mr. Reynolds's condition will continue to worsen, diminishing his ability to participate in trial. (Lee Decl. at ¶20.) Dr. Lee opines that there is substantial medical doubt of Mr. Reynold's survival beyond two months from the date of this declaration. (Id. at ¶21.)

The evidence

before the court is sufficient to establish that Plaintiff is entitled to a trial preference under Code of Civil Procedure section 36 subdivision (a). There is no dispute that Plaintiff's age is above the threshold required under the statute, or that he has a substantial interest in the litigation. There is likewise no substantive dispute as to whether Plaintiff's health is such that his interest in the litigation is likely to be prejudiced in the absence of trial preference. However, the court does not find that setting trial for 90 days from the hearing on this matter will prevent prejudice to Plaintiff's interests or serve the interests of justice. As Defendants point out in their oppositions, significant discovery and trial preparation remains to be completed in this action.

The parties appear

amenable to further discussion of the appropriate deadlines for discovery and law and motion matters prior to the submission of a proposed trial setting order. If necessary, the court will review any jointly submitted trial setting order and make rulings on any disputed deadlines at the hearing on the proposed

trial setting order.

III.

Conclusion

Plaintiff satisfied his burden to present sufficient evidence that trial preference is necessary to prevent prejudicing his interests in litigation. The motion for trial preference is granted. However, the court does not find that a trial date 90 days from the hearing on this matter is necessary. Trial is set for Monday, November 2, 2026 at 9:00 a.m. The Final Status conference is set for Monday, October 19, 2026 at 9:00 a.m. A status conference for the proposed trial setting order is set for Thursday, July 23, 2026 at 9:00 a.m.

Plaintiff to give notice.